

§ 302.2. Statute of limitations. A juvenile delinquency proceeding must be commenced within the period of limitation prescribed in section 30.10 of the criminal procedure law or, unless the alleged act is a designated felony as defined in subdivision eight of section 301.2 of this part or is an act allegedly committed when the respondent was aged sixteen years or older, commenced before the respondent's eighteenth birthday, whichever occurs earlier, provided however, that consistent with subdivision four of section 302.1 of this part, a proceeding commenced for an act allegedly committed when the respondent was aged sixteen years or older shall be considered timely if it is commenced within such period of limitation prescribed in section 30.10 of the criminal procedure law or prior to the respondent's twentieth birthday, whichever occurs earlier, regardless of whether the action had originally been commenced prior to the respondent's eighteenth birthday in a youth part of a superior court. When the alleged act constitutes a designated felony as defined in subdivision eight of section 301.2 of this part or is an act allegedly committed when the respondent was aged sixteen years or older, such proceeding must be commenced within such period of limitation or before the respondent's twentieth birthday, whichever occurs earlier.